

13.	<i>Seton Hall University vs. Spitz</i> 2026-01555640	Before the court are following applications and petition filed on behalf of petitioner Seton Hall University (Petitioner): (1) verified application of Thomas P. Scrivo to appear as counsel pro hac vice on behalf of Petitioner; (2) verified application of Michael J. Dee to appear as counsel pro hac vice on behalf of Petitioner; and (3) petition to enforce deposition subpoena for personal appearance and production of documents, electronically stored information, and things in action pending outside California pursuant to California Code of Civil Procedure section 2029.600. <u>Motion Nos. 1 & 2: Pro Hac Vice Applications</u> The applications Petitioner submitted on behalf of Messrs. Scrivo and Dee comply with the requires for California Rules of Court, rule 9.40 and do not disclose any basis for denying the applications. Accordingly, both applications are GRANTED and Messrs. Scrivo and Dee are hereby admitted pro hac vice in this case to appear on Petitioner's behalf. Petitioner is ordered to give notice of these rulings. <u>Motion No. 3: Petitioner to Enforce Deposition Subpoena</u> By this petition, Petitioner seeks to compel nonparty Eric Spitz (Spitz) to appear for deposition and produce documents. On May 11, 2026, Spitz filed an ex parte application to continue the hearing on this petition to provide him with adequate time to retain counsel. On May 12, 2026, the court denied that application because Spitz failed to establish he had acted with reasonable diligence or any other ground for an ex parte continuance. On May 14, 2026, attorney William Lockyer filed a notice of appearance stating he had been retained to represent Spitz in these proceedings. Late in the day on May 26, 2026, the court learned attached to the back of the notice of appearance attorney Lockyer filed was a renewed ex parte application to continue the hearing on the petition. That renewed ex parte was never calendared or set for hearing because Spitz never took any of the steps necessary to have the application heard. For example, Spitz never separately filed the application, never provided a copy to the courtroom, never paid the filing fee, and never notified the courtroom until May 26, 2026. As such, the renewed ex parte application was never separately filed as a request for the court to consider and was never scheduled for a hearing or ruling.
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